

		of being made certain by calculation” (Civ. Code, § 3287(a).) Prejudgment interest “ `is awarded only when the sum is liquidated within the meaning of the statute.’ [Citation.]” (<i>Duale v. Mercedes-Benz USA, LLC</i> (2007) 148 Cal.App.4th 718, 728.) Damages are deemed certain or capable being made certain within the meaning of the statute where there is essentially no dispute between the parties concerning the basis of computation of damages if they are recoverable but where their dispute centers on the issue of liability giving rise to damage. (<i>Id.</i> at p. 729.) Where the amount of damages cannot be resolved except by verdict or judgment, prejudgment interest is not appropriate. (<i>Ibid.</i>) Here, damages are not certain or capable of being made certain prior to trial. Moving party to give notice.
3	Cavalli v. Hanken 2025-01513300 Motion to be relieved as counsel as to Nazila Safavi CMC	The motion of attorney Scott Aval of Avrek Law Firm to withdraw as attorney of record for Plaintiff Nazila Safavi is GRANTED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.
4	L. v. Flores-Rivas 2022-01259553 Motion to be relieved as counsel as to N.L Motion to be relieved as to Susana Hurtado, GAL for F.Z. Motion to be relieved as to Susana Hurtado GAL for J.A. OSC re Dismissal on Settled case	MOTION No.1: The motion of attorney Stephen A. Madoni from Law Office of Stephen A. Madoni, PLC to be relieved as counsel of record for plaintiff N.L. is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the court’s order as entered. Withdrawal will be effective upon filing of proof of service of the order. MOTION NO. 2: The motion of attorney Stephen A. Madoni from Law Office of Stephen A. Madoni, PLC to be relieved as counsel of record for plaintiff F.Z., a minor by and through her Guardian ad Litem, Susana Hurtado, is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362.

		Moving attorney is ORDERED to give notice to client, and file proof of service of the court's order as entered. Withdrawal will be effective upon filing of proof of service of the order. MOTION NO. 3: The motion of attorney Stephen A. Madoni from Law Office of Stephen A. Madoni, PLC to be relieved as counsel of record for plaintiff J.A., a minor by and through her Guardian ad Litem, Susana Hurtado, is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
6	Popal v. Hernandez 2026-01538878 Motion to set aside/vacate default CMC	Defendant Jesus Hernandez's Motion for Relief from Entry of Default is DENIED. Plaintiff's objections to paragraph 4 of Lee's Declaration is SUSTAINED. "Although a trial court has discretion to vacate the entry of a default or subsequent judgment, this discretion may be exercised only after the party seeking relief has shown that there is a proper ground for relief, and that the party has raised that ground in a procedurally proper manner, within any applicable time limits." (<i>Cruz v. Fagor America, Inc.</i> (2007) 146 Cal.App.4th 488, 495.) "While section 473 authorizes a court to relieve a party from default suffered through inadvertence, surprise, excusable neglect or mistake, these words are not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category. A party who seeks relief under section 473 must make a showing that due to some mistake, either of fact or of law, of himself or of his counsel, or through some inadvertence, surprise or neglect which may properly be considered excusable, the judgment or order from which he seeks relief should be reversed. In other words, a burden is imposed upon the party seeking relief to show why he is entitled to it, and the assumption of this burden necessarily requires the production of evidence. In a motion under section 473 the initial burden is on the moving party to prove excusable neglect by a preponderance of the evidence." (<i>Kendall v. Barker</i> (1988) 197 Cal.App.3d 619, 623-624.)